



**IN THE HIGH COURT OF PUNJAB AND HARYANA
AT CHANDIGARH**

**CRM-M-21902-2026 (O&M)
DECIDED ON: 10.06.2026**

MANOHAR SINGH

.....PETITIONER

VERSUS

STATE OF PUNJAB

.....RESPONDENT

CORAM: HON'BLE MS. JUSTICE MANDEEP PANNU

Present: Mr. G.S. Sandhu, Advocate
for the petitioner.

Mr. Sahil Chowdhary, AAG, Punjab.

MANDEEP PANNU, J (ORAL)

1. This is the first petition under Section 482 of BNSS, 2023 (Section 438 of Cr.P.C.) seeking anticipatory bail to the petitioner in event of arrest in FIR No.0014 dated 29.01.2026, under Sections 22(c)/ 61/85 of NDPS Act, 1985 and Section 29 of NDPS Act, 1985 (added later on), registered at Police Station Kotbhai, District Sri Muktsar Sahib (Annexure P-1).

2. The brief facts as alleged in the FIR are that a police party, while on patrol duty, apprehended co-accused Uttam Singh and Harjinder Singh @ Jinda, who were found sitting under a shed at the grain market with a grey-coloured bag in their possession and were allegedly searching it. On seeing the police party, both accused became apprehensive and attempted to flee after closing the zip of the bag. On suspicion, they were stopped by the

police party, and upon search of the said bag, 9000 tablets of Clomone 100 mg, containing the salt Tramadol Hydrochloride, were allegedly recovered from their possession, leading to registration of the present FIR. The involvement of the petitioner has been subsequently added through DDR/Rapat No. 38 dated 01.02.2026 under Section 29 of the NDPS Act, on the basis of the disclosure statement of a co-accused.

3. Learned counsel for the petitioner contends that the petitioner has been falsely implicated in the present case. He further contends that the petitioner was nominated as an accused in the instant FIR only on the basis of disclosure statement of co-accused. It has been further contended that nothing has been recovered from the present petitioner as whatever recovery was effected, that was from co-accused persons. It has been further contended that except the disclosure statement, no other evidence is available with the prosecution to connect the petitioner with the alleged commission of the offence. Learned counsel further submits that the petitioner is ready and willing to join the investigation and cooperate with the investigating officer concerned.

4. Notice of motion.

5. On the asking of the Court, Mr. Sahil Chowdhary, AAG, Punjab, appears and accepts notice on behalf of the respondent-State and submits that during investigation it has emerged that the petitioner was actively involved in the alleged supply of narcotic tablets containing Tramadol Hydrochloride to co-accused Uttam Singh and Harjinder Singh @ Jinda. It is further submitted that both the co-accused, during investigation, disclosed that the recovered contraband was procured from the petitioner, a resident of Shergarh, District Jodhpur, Rajasthan, who runs a dhaba there,

and that similar contraband had earlier also been procured from him on three occasions. It is further the case of the prosecution that payment for the present consignment was made partly in cash and partly through Google Pay, and that Call Detail Records as well as WhatsApp communication reflect continuous contact between the petitioner and the co-accused prior to the recovery, including WhatsApp calls dated 18.01.2026, 22.01.2026, and 23.01.2026.

6. It is further submitted that during investigation, scrutiny of the bank records revealed that co-accused Uttam Singh transferred an amount of Rs. 7,600/- through Google Pay from mobile number 98788-24590 to mobile number 99264-46080 on 28.01.2026. The said mobile number 98788-24590 is linked with bank account No. 4420/302359 of State Bank of India, Akal Sar Road, Moga, in the name of Uttam Singh, whereas the recipient mobile number 99264-46080 is registered in the name of Arjun Singh and linked with Bank of India account No. 948610110005814, Mansa branch. It is alleged that the said amount was transferred for the purchase of narcotic tablets recovered in the present case, leading to the nomination of Arjun Singh in the FIR vide GD No. 46 dated 02.05.2026. It is further submitted that during investigation, the Call Detail Records of mobile number 96025-37682 belonging to the present petitioner were analysed, which revealed that the petitioner was in telephonic contact with co-accused Arjun Singh on mobile number 99264-46080 on 25.10.2025, 18.11.2025, and 28.12.2025. On this basis, it is alleged that the financial transaction coupled with continuous telephonic interaction establishes a nexus and connection of the present petitioner with co-accused Arjun Singh in relation to the present case. It has been submitted that the investigation clearly

establishes the active nexus and involvement of the petitioner in the supply chain of the recovered commercial quantity of narcotic tablets. Lastly it has been submitted that the petitioner is a habitual offender as he is involved in two other criminal cases.

7. I have heard learned counsel for the parties and have gone through the record.

8. Without expressing any opinion on the merits of the case, and considering the nature and gravity of the allegations, the material collected during investigation indicating the active role and nexus of the petitioner in the alleged supply chain of commercial quantity of narcotic substances, the recovery of contraband from co-accused, the disclosure statements, the financial transactions coupled with telephonic contact between the petitioner and co-accused persons, and the fact that the petitioner is stated to be involved in other criminal cases, this Court does not find it to be a fit case to grant the concession of anticipatory bail to the petitioner.

9. Accordingly, the present petition is dismissed.

10. However, it is made clear that nothing stated hereinabove shall be construed as an expression on the merits of the case.

11. All pending miscellaneous application(s), if any, stands disposed of.

10.06.2026

Poonam Negi

(MANDEEP PANNU)
JUDGE

Whether speaking/reasoned
Whether reportable

Yes/No
Yes/No